

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                           |                           |                                                                                                                                                                                                                       |
|---------------------------------------------------|---------------------------------------------------------------------------|---------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>John Hanley                      | Team:<br>Squad #10                                                        | CCRB Case #:<br>201701004 | <input type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 02/02/2017 11:35 AM | Location of Incident:<br>In front of McDonalds at 599 East Tremont Avenue | 18 Mo. SOL<br>8/2/2018    | Precinct:<br>48                                                                                                                                                                                                       |
| Date/Time CV Reported<br>Thu, 02/02/2017 1:13 PM  | CV Reported At:<br>IAB                                                    | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Tue, 02/07/2017 11:02 AM                                                                                                                                                                |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Subject Officer(s) | Shield | TaxID  | Command  |
|--------------------|--------|--------|----------|
| 1. An officer      |        |        | NARCB BX |
| 2. SGT Brian Query | 05001  | 937315 | NARCB BX |

| Witness Officer(s)    | Shield No | Tax No | Cmd Name |
|-----------------------|-----------|--------|----------|
| 1. POM Sean Destefano | 13029     | 940087 | NARCB BX |

| Officer(s)          | Allegation                                                 | Investigator Recommendation   |
|---------------------|------------------------------------------------------------|-------------------------------|
| A . SGT Brian Query | Abuse: Sergeant Brian Query drew his gun.                  | A . Complainant Uncooperative |
| B . An officer      | Discourtesy: An officer spoke discourteously to § 87(2)(b) | B . Complainant Uncooperative |

### Case Summary

On February 2, 2017, § 87(2)(b) filed this complaint with IAB on behalf of her husband, § 87(2)(b). It was referred to the CCRB via IAB log # 17-4531 on February 7, 2017.

Between February 13, 2017, and March 2, 2017, the undersigned called § 87(2)(b)'s cell phone a total of eight times, leaving six voice messages. In a call placed on March 1, 2017, the phone was answered and disengaged and the undersigned was unable to leave a voice message. Additionally, please call letters were mailed to § 87(2)(b)'s residence on February 13, 2017, February 21, 2017, and March 1, 2017. On March 8, 2017, a please call- letter which was mailed to § 87(2)(b) on February 21, 2017 was returned to the CCRB as not deliverable by the United States Postal Service. In a call placed at 5:30 PM on March 2, 2017, § 87(2)(b) answered the call with § 87(2)(b) present. Both confirmed their contact information and provided brief statements regarding the incident. The refusal to provide name and shield allegation initially pleaded was removed when § 87(2)(b) clarified that she asked an officer for the arresting officer's name and shield number and at no time asked an officer for his own name and shield number. As § 87(2)(b) had been arrested and had pending charges, he stated he would follow up with the undersigned the following week after consulting with his attorney. § 87(2)(b) additionally confirmed that they had received please call-letters from the CCRB.

Between March 6, 2017 and March 22, 2017, the undersigned placed an additional five calls to § 87(2)(b) and § 87(2)(b) leaving voice messages on all five calls. A text message was sent to § 87(2)(b) and § 87(2)(b) cell phone number on March 20, 2017. Additionally, two please call letters were mailed to § 87(2)(b) on March 20, 2017 and March 27, 2017. To date, neither letter has been returned to the CCRB from the United States Postal Service. To date, neither the letter sent on February 13, 2017, nor the letter sent on March 1, 2017, have been returned to the CCRB by the United States Postal Service. A search of the NYC Department of Corrections conducted on March 15, 2017 revealed neither § 87(2)(b) nor § 87(2)(b) are currently incarcerated. To date, § 87(2)(b) and § 87(2)(b) have failed to contact the CCRB and the CCRB has been unable to schedule them for interviews. § 87(2)(g)

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Squad:

|               |                 |       |       |
|---------------|-----------------|-------|-------|
| Investigator: | _____           | _____ | _____ |
|               | Signature       | Print | Date  |
| Squad Leader: | _____           | _____ | _____ |
|               | Title/Signature | Print | Date  |
| Reviewer:     | _____           | _____ | _____ |
|               | Title/Signature | Print | Date  |